

26SMCV01433 26SMCV01433

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Case Number: 26SMCV01433 Hearing Date: July 1, 2026 Dept: P

Tentative

Ruling

Sharon

Crystal, Inc., et al. v. Sharon Crystal, et al., Case No. 26SMCV01433

Defendant's

Motion for Trial Preference

Hearing

Date: July 01, 2026

Background

On March

17, 2026, Plaintiffs Sharon Crystal, Inc. ("Crystal") and Shannon Bankosh ("Bankosh") sued Defendants Sharon Crystal ("Sharon"), Holly Crystal ("Holly"), Darla Smith, and Chad Miller for twenty claims, including conversion, theft, intentional interference with contractual relations, breach of fiduciary duty, defamation, fraud, and breach of lease. Plaintiffs allege that Sharon is Bankosh and Holly's mother. (Complaint, ¶ 12.) Plaintiffs allege that Sharon and her husband Terry started Crystal, a company selling goods at Renaissance Faires throughout the country, in the 1970s. (Id. at ¶ 9.) Plaintiffs allege that Sharon and Terry gave control of the company to Bankosh when they decided to retire in 2022, though Sharon remained an active employee. (Id. at ¶ 19.) Plaintiffs allege that Holly was not involved in Crystal until January 2026, when she, Darla Smith, and Chad Miller took over the company and locked Bankosh out of Crystal's Culver City offices. (Complaint, ¶ 34.)

On April

24, 2026, Sharon and Holly filed a cross-complaint against Bankosh alleging financial elder abuse, fraud, breach of fiduciary duty, cancellation of instruments, and conversion.

On April

27, 2026, Sharon and Holly filed an ex parte application for a temporary restraining order removing Bankosh as Crystal's Director and enjoining her from interfering with Crystal's operations at the Colorado Renaissance Festival. On April 27, 2026, the Court denied Sharon and Holly's ex parte application.

On April

30, 2026, Sharon and Holly filed this motion for trial preference. On May 14, 2026, Plaintiffs filed opposition. On May 20, 2026, Sharon and Holly replied.

On June 3,

2026, the Court denied Sharon and Holly's motion for trial preference. On June 16, 2026, the Court received the Court of Appeals' tentative order directing the court to either vacate the order denying preference and enter a new order granting preference or show cause why a peremptory writ should not issue.

On June

17, 2026, the Court issued a minute order setting an OSC re: Appellate Order for July 1, 2026, indicating that it is considering vacating the June 3 order.

On June 24, 2026, both parties submitted briefs in anticipation of the July 1 hearing.

Arguments

Sharon and

Holly argue that Sharon is 90 years old, is experiencing significant health concerns, and has a substantial interest in this action as a defendant, cross-complainant, and Crystal's former owner. (Motion for Trial Preference, pp. 1-2.)

In

opposition, Plaintiffs argue that Sharon does not have a substantial interest in the action as a whole and that her health concerns will not prejudice her interests in this case because her cross-complaint is largely derivative and

could be prosecuted by Holly, in her capacity as Sharon's trustee. (Opposition, p. 5-6.) Plaintiffs also argue that trial preference would prejudice their ability to prepare for a complex trial. (Id. at p. 7.)

In reply,

Sharon and Holly argue that Plaintiffs' difficulty preparing for trial is immaterial and that they have met Code Civ. Proc. § 36's requirements. (Reply, p. 3-4.)

In their

brief in anticipation of this hearing, Sharon and Holly argue that Sharon's medical condition and age will prejudice her interest in this case if trial is delayed and ask that trial be set no later than October 1, 2026.

In her

brief in anticipation of this hearing, Shannon argues that the Court should affirm its June 3 ruling because Sharon's interests would not be prejudiced by denying the motion for trial preference. Further, Sharon argues that this case is a matter of first impression—no authority exists addressing a trial preference motion at this stage of a multi-party tort dispute. (Plaintiff's brief, p. 1.) Shannon argues that the Appellate Court's conclusion conflates the two elements of a §36(a) trial preference motion. Shannon also argues that granting preference raises due process concerns that no appellate court has resolved because such an early trial date would undermine the parties' ability to prepare for trial. (Id. at p. 5.)

Motion

for Trial Preference- Legal Standard

Code of

Civil Procedure section 36, subdivision (a) provides as follows:

“(a)∫A

party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1)∫The

party has a substantial interest in the action as a whole.

(2) The

health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

If the

Court makes these findings, trial preference is mandatory—the Court lacks discretion to deny the relief. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 692.) The purpose of section 36, subdivision (a) is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon the granting of a motion for trial preference, "the court shall set the matter for trial not more than 120 days from that date." (Code Civ. Proc., § 36, subd. (f).) The

Discussion

Sharon

submits evidence that she is 90 years old. (Montgomery Declaration, ¶ 4.) Sharon Crystal's age is undisputed.

"The issue

under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. The provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that the party's "health . . . is such that a preference is necessary to prevent prejudicing [his/her] interest in the litigation." (Italics added.)" (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) The absence of specifics regarding plaintiff's prognosis is insufficient reason to deny a request for calendar preference. "Subdivision (a) requires the granting of calendar preference to 'prevent' prejudice to a stricken litigant's interests." (Italics added.) The idea that [plaintiff] should be made to wait to file a preference motion until she is clearly in her final days—when attendance at a trial is hardly what she should be doing—makes no sense at all." (*Id.* at p. 536.)

Both

parties submit evidence of Sharon's declining mental and physical health. (See Montgomery Declaration, ¶ 5; Rognlien Declaration, Exhibit 1.) Sharon's health concerns are undisputed.

In Fox

v. Superior Court, the First District Court of Appeal rejected an argument that the Court should balance the parties' interests in expedition against its interest in having adequate time to prepare for trial. (Fox v. Superior Court, supra, 21 Cal. App.5th at 535.) The Court also acknowledged the potential due process concerns under § 36(a) in a situation like this, where the pleadings are not set and trial by October 2026 would necessarily compress both parties' pleadings and discovery timelines. (Id. at fn. 3.) However, the Court of appeals in Fox is clear that this Court's role is not to balance the prejudices of granting a motion for trial preference. (Id. at 535.)

Were she

to die during the pendency of this action, Sharon's interest in this case would be prejudiced. Therefore, trial preference is mandatory.

Conclusion

Defendants'

Motion for Trial Preference is Granted.

Trial is

set for September 28, 2026, at 9:30 a.m. The Final Status Conference is set for September 18, 2026, at 9:30 a.m.

Finally,

Cross-Defendant's Demurrer and Motion to Strike are advanced from September 30, 2026 to August 5, 2026, at 8:30 a.m.